

ELIZABETH II



1966 CHAPTER xvi

An Act to confer further powers on the mayor, aldermen and burgesses of the borough of Barry; to make further provision with respect to the health, local government, improvement and finances of the borough; and for other purposes. [3rd August 1966]

WHEREAS the borough of Barry (hereinafter called “the borough”) is a borough under the government of the mayor, aldermen and burgesses of the borough (hereinafter called “the Corporation”):

And whereas it is expedient to make further provision with reference to the health, local government, improvement and finances of the borough, and that the powers of the Corporation in relation thereto should be enlarged and extended as by this Act provided:

And whereas it is expedient that the other provisions of this Act should be enacted:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

And whereas in relation to the promotion of the Bill for this Act the requirements of Part XIII of the Local Government Act, 1933, have been observed:

May it therefore please Your Majesty that it may be enacted, and be it enacted, by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

PART I

PRELIMINARY

Short and
collective
titles.

1.—(1) This Act may be cited as the Barry Corporation Act 1966.

1896 c. ccxlv.
1913 c. xcix.
1956 c. xlviii.
1957 c. xxxi.
1964 c. xiv.

(2) The Barry Urban District Council Act, 1896, the Barry Urban District Council Act, 1913, the Barry Corporation (Barry Harbour) Act, 1956, the Barry Corporation Act, 1957, the Barry Corporation Act 1964 and this Act may be cited together as the Barry Corporation Acts, 1896 to 1966.

Division of
Act into
Parts.

2. This Act is divided into Parts as follows:—

- Part I.—Preliminary.
- Part II.—Lands, streets, etc.
- Part III.—Buildings and structures.
- Part IV.—Public health.
- Part V.—Public order.
- Part VI.—Fire prevention.
- Part VII.—Window cleaners.
- Part VIII.—Animal food and slaughter of animals.
- Part IX.—Finance, superannuation, etc.
- Part X.—Miscellaneous.
- Part XI.—General.

Interpretation.

3.—(1) In this Act the several words and expressions to which meanings are assigned by section 343 of the Act of 1936 have the same respective meanings, unless the subject or context otherwise requires.

(2) In this Act, unless the subject or context otherwise requires—

- 1933 c. 51. “the Act of 1933” means the Local Government Act, 1933;
- 1936 c. 49. “the Act of 1936” means the Public Health Act, 1936;
- 1950 c. 39. “the Act of 1950” means the Public Utilities Street Works Act, 1950;
- 1957 c. 56. “the Act of 1957” means the Housing Act, 1957;
- 1959 c. 25. “the Act of 1959” means the Highways Act, 1959;

PART I
—cont.

- “ the Act of 1960 ” means the Road Traffic Act, 1960;
- “ the Act of 1962 ” means the Town and Country Planning Act, 1962; 1960 c. 16.
1962 c. 38.
- “ appointed day ” has the meaning assigned thereto by section 63 (The appointed day) of this Act;
- “ borough ” means the borough of Barry;
- “ claimed road ” means a county road in respect of which the Corporation have claimed (under section 32 of the Local Government Act, 1929, or section 45 of the Act of 1959) 1929 c. 17. to exercise, and are exercising, the function of maintenance;
- “ contravention ” includes a failure to comply and “ contravenes ” shall be construed accordingly;
- “ Corporation ” means the mayor, aldermen and burgesses of the borough;
- “ council ” means the council of the borough;
- “ county council ” means the council of the administrative county of Glamorgan;
- “ county road ” has the meaning assigned thereto by section 295 of the Act of 1959;
- “ daily fine ” means a fine for each day on which an offence is continued after conviction;
- “ docks board ” means the British Transport Docks Board;
- “ enactment ” includes an enactment in this Act or in any public, general or local Act, or any order, byelaw, scheme or regulation for the time being in force in the borough;
- “ general rate fund ” means the general rate fund of the borough;
- “ industrial building ” has the meaning assigned thereto by the Local Employment Act, 1960; 1960 c. 18.
- “ land ” includes any interest in land, any easement or right in, to or over land, and messuages, hereditaments and buildings of any tenure;
- “ magistrates’ court ” has the meaning assigned thereto by section 124 (1) of the Magistrates’ Courts Act, 1952; 1952 c. 55.
- “ medical officer of health ” means the medical officer of health of the borough;
- “ Minister of the Crown ” has the same meaning as in the Ministers of the Crown (Transfer of Functions) Act, 1946; 1946 c. 31.
- “ public service vehicle ” has the meaning assigned thereto by section 117 of the Act of 1960;

PART I
—cont.

“ railways board ” means the British Railways Board;

“ seashore ” includes any bank, barrier, dune, beach, flat or other land adjacent to the foreshore;

“ statutory undertakers ” means any company, body or person authorised by any enactment to supply electricity, gas or water;

1878 c. 76.

“ telegraphic line ” has the meaning assigned thereto by section 2 of the Telegraph Act, 1878;

“ town clerk ” means the town clerk of the borough.

(3) Any reference in this Act to any other enactment shall, unless the context otherwise requires, be construed as a reference to that enactment as amended by any other enactment, including this Act.

PART II

LANDS, STREETS, ETC.

Undertakings
and
agreements
binding
successive
owners.

4.—(1) Every undertaking given by or to the Corporation to or by the owner of a legal estate in land, and every agreement made between the Corporation and any such owner, being an undertaking or agreement—

(a) given or made under seal on the passing of plans or otherwise in connection with the land; and

(b) expressed to be given or made in pursuance of this section;

shall be binding not only upon the Corporation and any owner joining in the undertaking or agreement, but also upon the successors in title of any owner so joining and any person claiming through or under them.

1925 c. 22.
1926 c. 11.

(2) Such an undertaking or agreement shall be treated as a local land charge for the purposes of the Land Charges Act, 1925, as amended by the Law of Property (Amendment) Act, 1926.

(3) Any person upon whom such an undertaking or agreement is binding shall be entitled to require from the Corporation a copy thereof.

1896 c. ccxlv.

(4) Section 46 (Undertakings to bind successive owners) of the Barry Urban District Council Act, 1896, is hereby repealed and every undertaking or agreement given or made in pursuance of that section shall be deemed to have been given or made under this section.

5. The Corporation may, if requested so to do by any person—

PART II

—cont.

(1) who is the owner or intended owner or lessee of any land in the borough; or

Power to
Corporation
to assist
industry.

(2) who has purchased or intends to purchase or take on lease from the Corporation any land (whether within or outside the borough);

being in either case land upon which an industrial building is built or is intended to be built, extended or improved, carry out any work required in relation to the preparation or improvement of the site for that building or for the provision or improvement of services or facilities on which any trade or business carried on or intended to be carried on in such building depends, and may with the approval of the Secretary of State make grants or loans towards the cost of such works or of the provision or improvement of such services or facilities or both:

Provided that nothing in this section shall authorise the Corporation to carry out works for the provision or improvement of services which it is the function of statutory undertakers to provide or improve.

6. Section 5 of the Local Authorities (Land) Act 1963, in its application to the Corporation and the borough, shall have effect as if in subsection (2) thereof after the word “let” there were inserted the words “to any person or license any person to use”, and as if the words “to any person” were omitted from that subsection.

Extension of
section 5
of Local
Authorities
(Land) Act
1963.
1963 c. 29.

7.—(1) The Corporation may expunge or remove any picture, letter, sign or other mark painted or otherwise inscribed or affixed upon the surface of a highway or upon a tree, structure or works on or in a highway contrary to paragraph (cc) of subsection (1) of section 117 of the Act of 1959.

Defacing of
road surface,
etc.

(2) The court by which a person is convicted of an offence under the said section 117 may, whether or not it imposes a fine, by order require him to pay to the Corporation any expenses incurred by them in re-erecting, restoring or reinstating a traffic sign, milestone or direction post pulled down, damaged or obliterated contrary to paragraph (c) of subsection (2) of the said section or incurred by them under subsection (1) of this section.

8.—(1) The Corporation may by notice prohibit persons from driving or permitting to be driven any mechanically propelled vehicle upon any grass verge laid out in connection with a footway in any street in the borough and maintained in an ornamental condition or mown or any garden or space provided by the Corporation in pursuance of the Act of 1957 or any other enactment and so maintained:

Prohibition
of vehicles on
grass verges,
gardens, etc.

PART II
—cont.

Provided that any such notice shall not apply to—

- (a) the owner or occupier of or any person residing in any premises fronting or abutting on any such street driving or permitting or causing to be driven any vehicle to or from those premises; or
- (b) the temporary crossing of a grass verge, garden or space during building operations if means satisfactory to the Corporation be taken to protect such grass verge, garden or space from injury and for the convenience of pedestrians; or
- (c) the temporary use of any vehicle on a grass verge, garden or space by statutory undertakers in the exercise of the rights of such undertakers with respect to any apparatus (including the placing of apparatus) or by any person in the exercise of any statutory right or power to enter upon any lands.

(2) Any such notice as is referred to in the preceding subsection shall be conspicuously posted on or in proximity to the grass verge, garden or space to which it relates and if any person contravenes a notice so posted (except in a case of emergency) he shall be liable for every such offence to a fine not exceeding twenty shillings in addition to the amount of damage (if any) thereby caused to such grass verge, garden or space.

(3) The powers conferred by this section shall not be exercised in relation to any trunk road without the consent of the Secretary of State or in relation to any county road (other than a claimed road) without the consent of the county council.

1952 c. li.

(4) Subsections (2) and (3) of section 23 (Trees grass verges and gardens) of the Glamorgan County Council Act, 1952, shall cease to apply to the Corporation.

Illumination
of street
names.

9.—(1) Subject to the provisions of this section, the Corporation may illuminate any inscription which has been set up of the name of any street in the borough:

Provided that the Corporation shall not continue any illumination under this section which, in the opinion of the railways board, hinders or is likely to hinder the ready interpretation of any railway signal, or is likely to render hazardous the use of any railway.

(2) The Corporation may for the purposes of this section affix lamps, brackets, pipes, electric lines or other apparatus (hereafter in this section referred to as “attachments”) to a building with the consent of the owner of the building:

~~Provided that where in the opinion of the Corporation any~~
consent required under this subsection is unreasonably withheld, they may apply to a magistrates’ court, who may either allow

the affixing of the attachments subject to such conditions (if any) as to rent or otherwise as the magistrates' court thinks fit or disallow the affixing of the attachments.

PART II
—cont.

(3) Any electrical apparatus provided in pursuance of the powers of this section shall be so constructed, maintained and used as to prevent interference with any telegraphic line belonging to or used by the Postmaster General or with telegraphic communication by means of any such line or with any apparatus belonging to or maintained by the Central Electricity Generating Board or the South Wales Electricity Board.

(4) Except with the consent of the Minister of Public Building and Works the Corporation shall not under this section affix any attachments to a building which is for the time being included in a list published under section 12 of the Ancient Monuments Consolidation and Amendment Act, 1913.

1913 c. 32.

10. As from the appointed day section 65 of the Towns Improvement Clauses Act, 1847 (which requires the occupiers of houses and other buildings in streets to mark their houses with numbers), shall have effect in its application to the borough as if after the words "with such numbers as the commissioners approve of" there were inserted the words "and in such positions as to be easily visible from the street," and as if after the words "a number approved of by the commissioners" there were inserted the words "and in such position as to be easily visible from the street".

Numbers of
houses.
1847 c. 34.

11.—(1) Where any street works in the borough have been completed by the Corporation but the Corporation are unable to recover the amount due from the owner of any premises or otherwise under the code of 1892 by reason of the fact that such owner is unknown and cannot after diligent inquiry made when the said amount becomes due and at reasonable intervals thereafter be found, the Corporation may at any time after the expiration of twelve years from the date when the said amount becomes due apply to the county court and that court may, on the receipt of such application and on being satisfied that the provisions of this subsection have been complied with, make an order vesting the said premises in the Corporation absolutely and thereupon the Corporation may appropriate the said premises subject to and in accordance with the provisions of section 163 of the Act of 1933 as if the said premises were land which was not required for the purpose for which it was acquired.

Recovery of
street works
charges where
owner
unknown.

(2) Where the county court makes an order under subsection (1) of this section the Lands Tribunal shall for the purpose of determining the value of the said premises nominate one of their members selected in accordance with subsection (6) of section 1 and section 3 of the Lands Tribunal Act, 1949, and the member

1949 c. 42.

PART II
—cont.

nominated shall determine the same accordingly and shall annex to his valuation a declaration in writing subscribed by him of the correctness thereof and the Corporation shall thereupon pay into court a sum equal to the amount of such valuation after deduction of the amount of the final apportionment in respect of the said premises with interest thereon for a period of six years at the rate of five per centum per annum, or at such other rate as may have been fixed by order of the Minister of Housing and Local Government under section 212 of the Act of 1959, together with all costs and expenses reasonably incurred by the Corporation.

1965 c. 56.

(3) Any sum to be paid into court under subsection (2) of this section shall be paid and applied in accordance with section 25 of the Compulsory Purchase Act 1965.

(4) The powers conferred by subsection (1) of this section shall be exercisable by the Corporation in addition to any existing rights, powers and remedies for the recovery of expenses and shall be exercisable by the Corporation in respect of all street works whether completed before or after the passing of this Act.

(5) In this section “code of 1892” has the meaning assigned thereto by section 173 (1) of the Act of 1959.

Temporary
prohibition
or restriction
of traffic
during
execution of
works.

12.—(1) Where the Corporation are satisfied—

- (a) that traffic on any street in the borough for the maintenance of which they are responsible should, by reason of any works being executed or proposed to be executed on or near the street, be prohibited or restricted; and
- (b) that it is desirable that such prohibition or restriction should come into force without delay and that for this reason it is not expedient to effect the same by means of an order made under subsection (1) of section 36 of the Act of 1960;

they may by notice prohibit or restrict for any period not exceeding twenty-four hours the use of that street or any part thereof by vehicles or by vehicles of any particular class or description to such extent and subject to such conditions and exceptions as they may consider necessary:

Provided that the powers conferred on the Corporation by this section shall not be exercised—

- (i) with respect to any street or any part thereof on more than one occasion in any period of fourteen consecutive days; or
- (ii) with respect to any street upon which public service vehicles are authorised by a road service licence to operate unless the Corporation give not less than forty-eight hours’ previous notice to the traffic commissioners and to the operators of the public service vehicles so licensed; or

(iii) so as to obstruct or interfere with the access to or exit from any station or depot of the railways board.

PART II
—cont.

(2) The provisions of subsections (3), (4), (5), (8), (9) and (10) of section 36 of the Act of 1960 shall extend and apply for the purposes of this section as if any notice issued by the Corporation under subsection (1) of this section had been issued under subsection (2) of that section.

(3) No prohibition or restriction on the use of any street under the powers of this section shall make it unlawful for statutory undertakers to enter upon such street in a case of emergency with any necessary vehicles for the purpose of inspecting, repairing, maintaining, renewing or removing any apparatus of the undertakers concerned which at the time of the imposition of such prohibition or restriction is in that street.

13.—(1) Any person may in connection with any building operations or work of demolition, or in connection with the alteration, repair, maintenance or cleansing of the exterior of any building, erect or place or cause to be erected or placed any scaffolding, obstruction or projection constituting an obstruction (each of which is hereafter in this section referred to as “scaffolding”) in, upon or over any street in the borough if he has previously obtained a licence from the Corporation and complies with such terms and conditions as may be laid down in the licence granted to him: Licence to erect scaffolding.

Provided that the Corporation shall be entitled to refuse a licence only on the grounds that the scaffolding would cause an avoidable or unreasonable obstruction of such street.

(2) Any scaffolding erected under a licence granted under this section shall be sufficiently lighted during the hours of darkness:

Provided that this subsection shall not apply to a scaffolding projecting over the footway of a street but not over the carriageway if no part thereof is less than eight feet above the level of the footway measured vertically and if the nearest part thereof to the carriageway is at least one foot six inches from the carriageway measured horizontally.

(3) Any person offending against the provisions of this section or contravening the terms or conditions of any licence granted to him shall be liable for every such offence to a fine not exceeding five pounds and to a daily fine not exceeding forty shillings.

(4) Any person aggrieved by the refusal of the Corporation to grant a licence under this section or by the terms and conditions laid down in any such licence may appeal to a magistrates' court.

(5) No licence shall be required under this section in respect of any scaffolding erected or placed by the docks board or the railways board for the purpose of constructing, reconstructing or maintaining any works in the exercise of their statutory powers.

PART II
—cont.

(6) Before the Corporation grant any licence under this section they shall give to any statutory undertakers who appear to them to be concerned notice (the period of which shall, except in a case of emergency, be not less than seven days) of their intention to do so, and on giving any such licence shall attach thereto such conditions as any of the statutory undertakers may reasonably require for the protection of any apparatus belonging to, or used or maintained by, the statutory undertakers.

Oil pipes and
manholes in
streets.

14.—(1) The owner or occupier of any premises situated under, or abutting on part of, a street in the borough may, with the consent of the Corporation, provide—

(a) pipes under the street for conveying oil for use or storage to such premises; or

(b) manholes in the street in connection with any such pipes.

(2) In giving their consent under this section the Corporation may attach thereto such terms and conditions as they think fit, and such terms and conditions, and any conditions imposed by them under subsection (5) of this section, shall be binding on successive owners and occupiers of the premises, and shall be treated as a local land charge for the purposes of the Land Charges Act, 1925, as amended by the Law of Property (Amendment) Act, 1926.

1925 c. 22.
1926 c. 11.

(3) Any person aggrieved by the refusal of the Corporation to give a consent under subsection (1) of this section or by any term or condition imposed by the Corporation under subsection (2) or subsection (5) of this section, may appeal to a magistrates' court.

(4) If any person carries out any works to provide pipes or manholes as aforesaid without the consent of the Corporation or fails to comply with any term or condition imposed by the Corporation on him under subsection (2) or subsection (5) of this section, he shall, subject to any order made on appeal, but without prejudice to any other liability to which he may be subject, be liable to a fine not exceeding five pounds.

(5) (a) Before the Corporation determine to give any consent under this section, they shall give at least twenty-eight days' notice of the application therefor to the Postmaster General and to any statutory undertakers who appear to them to be concerned, and on giving any such consent shall attach thereto such conditions as the Postmaster General or any such statutory undertakers may reasonably require for the protection of any apparatus belonging to, or used or maintained by, the Postmaster General or those statutory undertakers or in respect of access thereto.

(b) As soon as may be after the Corporation have given a consent under this section, they shall give notice thereof to the Postmaster General and to any such statutory undertakers.

(6) (a) Nothing in this section shall authorise any person to alter, or require any alteration of, any telegraphic line belonging to or used by the Postmaster General or any apparatus belonging to or maintained by the Central Electricity Generating Board, the South Wales Electricity Board or the Wales Gas Board.

PART II
—cont.

(b) In this subsection “alter” and “alteration” have the same meanings as in the Telegraph Act, 1878.

1878 c. 76.

(7) The giving of consent by the Corporation shall not relieve the person or persons to whom consent is given from liability for damage caused by him or them or any person acting on his or their behalf to any apparatus belonging to or maintained by statutory undertakers.

(8) The Act of 1950 shall not apply to the provision of pipes or manholes under subsection (1) of this section.

(9) This section shall not apply to—

(a) any street belonging to or repairable by the docks board or the railways board; or

(b) a pipe-line (as defined in section 65 of the Pipe-lines Act, 1962 c. 58. 1962) placed in a street under the provisions of section 15 of the Pipe-lines Act, 1962; or

(c) the carrying out of any works in a street by statutory undertakers in the exercise of their statutory powers.

15.—(1) The Corporation may provide, erect and maintain in proper and convenient situations within the borough, on or near to the route of any public service vehicles, signs or directions indicating the position of stopping places on such routes.

Signs
indicating
stopping
places for
public service
vehicles.

(2) The Corporation may enter into and carry into effect agreements with any persons authorised to run public service vehicles within the borough in relation to the provision, erection and maintenance of any such signs or directions and as to the contributions to be made by any such person towards the cost of the provision, erection and maintenance thereof.

(3) The exercise of the powers conferred by this section shall be subject to the provisions of the Act of 1960 and to any regulations made or any general or other directions given by the Minister of Transport in pursuance of the said provisions.

(4) This section shall not apply to a county road (other than a claimed road) except with the consent of the county council.

16. The Corporation may provide, erect and maintain direction posts of such size, colour and type as they may think fit in or adjacent to footpaths and bridleways with the consent of the owner in fee simple of the land in which it is proposed to erect the same and of any person having the control or management of such land.

As to
direction
posts relating
to rights of
way.

PART III

BUILDINGS AND STRUCTURES

Securing of
unoccupied
houses under
Housing Act,
1957.

17.—(1) (a) Before accepting, under section 16 of the Act of 1957, an undertaking that any house will not be used for human habitation until the Corporation cancel the undertaking the Corporation may require an additional undertaking that, until the first-mentioned undertaking is cancelled, the premises will be effectively secured so as to prevent, so far as is reasonably practicable, the entry into the premises, or any part thereof, when unoccupied, of any person other than a person authorised by the owner or the Corporation.

(b) Section 17 of the Act of 1957, shall, subject to any necessary modifications, apply in relation to any such additional undertaking as it applies in relation to such undertaking as is mentioned in the said section 16.

(2) Where—

(a) by a closing order made under sections 17, 18, 26 or 35 of the Act of 1957, the Corporation have ordered any house or building, or any part thereof, to be closed; or

(b) by a clearance order made under section 44 of the Act of 1957, the Corporation have ordered any building, or any part thereof, to be vacated, and in such a case it appears to the Corporation that the building, or the part thereof (as the case may be), will not be, or is unlikely to be, demolished within six weeks from the date when, in pursuance of the order, the premises are vacated;

they may, by notice to the owner of the house or building, require him, within such reasonable time as may be specified in the notice (not being less than seven days from the date when the notice becomes operative), to do such things in relation to the house or building, or the part thereof (as the case may be), as are reasonably required effectively to secure it so as to prevent the entry into the premises, when unoccupied, of any person other than a person authorised by the owner or the Corporation.

(3) A notice under subsection (2) of this section shall not require a person, when he has effectively secured a house or building, or any part thereof, as may be required in the notice to keep the premises so secured but, if at any time after the premises have been so secured it appears to the Corporation that they are no longer so secured, they may, after giving to the owner not less than forty-eight hours' notice of their intention to do so, themselves do such things in relation to the house or building, or part thereof, as will so secure the premises against entry.

(4) Sections 10, 11 and 37 of the Act of 1957 (which make provision for enforcement of certain notices and with respect to appeals against, and the date of operation of, such notices) shall, subject to any necessary modifications, apply in relation to a notice under subsection (2) of this section.

PART III
—cont.

(5) A notice shall not be given under subsection (2) of this section in any case where the Corporation have approved the use for any purpose of any premises which have been ordered to be closed so long as the premises are used for that purpose.

(6) Nothing in this section shall prejudice the powers of the Corporation to take steps to deal with any dangerous building under section 25 of the Public Health Act, 1961.

1961 c. 64.

(7) In this section—

“house” has the same meaning as in the Act of 1957;

“owner” includes any person deemed to be the person having control of the house for the purposes of Part II of that Act.

18.—(1) Any expenses adjudged to be payable to the Corporation consequent upon the exercise of their powers under subsection (1) of section 23 or subsection (3) of section 44 of the Act of 1957 shall until recovered be a charge on the premises in respect of which the expenses were incurred and on all estates and interests therein.

Expenses of
executing
demolition
orders, etc.

(2) The Corporation shall for the purpose of enforcing a charge under this section have all the powers and remedies under the Law of Property Act, 1925, and otherwise of mortgagees by deed having powers of sale and lease, of accepting surrenders of leases and of appointing a receiver.

1925 c. 20.

PART IV

PUBLIC HEALTH

19. The prohibition on the sorting over or disturbing of material in subsection (3) of section 76 of the Act of 1936 shall apply in respect of material deposited in any place in the borough used by the Corporation for the deposit of refuse whether provided by the Corporation or not.

Control of
Corporation's
refuse tips.

20.—(1) No person shall deposit in a dustbin or other receptacle for removal by or on behalf of the Corporation (whether as house refuse or trade refuse) any corrosive substances or inflammable liquids (whether in containers or not) whereby injury to the health of the Corporation's employees may be caused unless he takes such steps as may be reasonably necessary to prevent danger from the container.

Restriction
on use of
dustbins.

PART IV
—cont.

(2) No person shall deposit in a dustbin or other receptacle for the removal of house refuse by or on behalf of the Corporation any refuse of a liquid or partially liquid character unless in a closed container.

(3) If any person contravenes the provisions of this section, he shall be liable to a fine not exceeding five pounds.

Sanitary
conveniences
at places of
public
exhibition,
etc.

21.—(1) The Corporation may by notice require the owner or occupier of any premises or place in the borough at which any exhibition, performance, amusement, game or sport to which the public are or will be admitted is held, given or provided or is about to be held, given or provided, to provide to the reasonable satisfaction of the Corporation and thereafter to the like satisfaction maintain during the continuance of such exhibition, performance, amusement, game or sport in a suitable position such numbers of sanitary conveniences for the use of the public resorting to such premises or place as may be reasonable.

(2) Any person aggrieved by a requirement made under subsection (1) of this section may appeal to a magistrates' court.

(3) If any person fails to comply with a notice served on him under this section within such reasonable period, not being less than one month after the date of the service of the notice, as may be specified therein, and the public are thereafter admitted to the premises or place for any such exhibition, performance, amusement, game or sport, he shall be liable to a fine not exceeding five pounds and to a daily fine not exceeding forty shillings:

Provided that—

(a) in any proceedings under this subsection it shall be open to the defendant to question the reasonableness of the Corporation's requirements or of their decision to address their notice to him and not to the occupier or, as the case may be, the owner of the premises; and

(b) no proceedings shall be taken against a person who has failed to comply with a notice served on him under this section, if on the date when the public are admitted to the premises or place in respect of which the notice was served, he has ceased to be the owner or occupier thereof.

(4) (a) Section 89 of the Act of 1936 shall in its application to the borough have effect as if for the words "refreshment-house or place of public entertainment" in subsection (1) of that section there were substituted the words "or refreshment-house".

(b) Nothing in this section shall apply to premises to which the said section 89, as amended by this subsection, applies by reason only of the holding thereon of any exhibition, performance, amusement, game or sport to which the public are admitted.

(5) The provisions of this section shall not apply to any premises or place in respect of which byelaws for preserving sanitary conditions at pleasure fairs and roller-skating rinks may be made by the Corporation under section 60 (Byelaws as to pleasure fairs and roller-skating rinks) of the Glamorgan County Council Act, 1952, or section 75 of the Public Health Act, 1961.

PART IV
—cont.

1952 c. li.
1961 c. 64.

22.—(1) The Corporation may by notice require a contractor engaged in or upon any building operations in the borough, or in or upon the construction or reconstruction of any works therein, within such time as may be specified in the notice—

Sanitary
conveniences
for persons
employed on
construction
work.

(a) to provide sufficient and satisfactory sanitary conveniences for the workpeople employed thereon; and

(b) where the workpeople employed thereon comprise both men and women, to provide as aforesaid for men and women separately;

if it is reasonably practicable so to do:

Provided that this section shall not apply to building operations or works—

(i) to which section 127 of the Factories Act, 1961, applies; 1961 c. 34.
or

(ii) at any mine or quarry within the meaning of the Mines and Quarries Act, 1954.

1954 c. 70.

(2) The provisions of section 290 of the Act of 1936 shall apply in relation to notices given under this section as they apply in relation to the notices mentioned in subsection (1) of that section.

23.—(1) If a magistrates' court is satisfied upon a complaint by the Corporation that any smoke, gas or vapour from a chimney, flue or pipe of a building or structure forming part of, or within the curtilage of, a house in the borough is prejudicial to the health of any of the inhabitants of the borough or a nuisance, the court may make an order requiring the owner of the chimney, flue or pipe, within such time as may be specified in the order—

Power to
order
alteration of
domestic
chimneys.

(a) to cause it to be raised to a height so specified; or

(b) to cause such other means for remedying the cause of complaint to be adopted as the court thinks fit:

Provided that the court shall not make an order under this section unless it is satisfied that the work to be done in pursuance of the order need not involve an expenditure exceeding fifty pounds or such greater sum as the Secretary of State may from time to time approve.

PART IV
—cont.

(2) If any person fails to comply with an order made under this section he shall be liable to a fine not exceeding twenty pounds and to a daily fine not exceeding forty shillings.

PART V

PUBLIC ORDER

Entertainment
clubs.

24.—(1) In this section “entertainment club” means a club, organisation or body which, in furtherance of the objects or purposes for which the club, organisation or body was formed, is used by the members thereof for the purpose of entertainment, dancing or the playing of games in any premises.

(2) Subject to the provisions of subsection (15) of this section, on and after the appointed day—

(a) any premises in the borough used, whether occasionally or not, by an entertainment club shall be registered with the Corporation in accordance with the provisions of this section;

(b) if the owner or occupier of any premises in the borough uses the premises for the purposes of an entertainment club or permits the premises to be used for those purposes, he shall, unless the premises have been redistered with the Corporation and the registration remains in force, be liable to a fine not exceeding fifty pounds.

(3) The Corporation may refuse to register or renew the registration of any premises for use by an entertainment club if in the opinion of the Corporation—

(a) the premises are not safe for the purpose having regard to their character and condition and the size and nature of the club; or

(b) the premises are not provided with satisfactory means of lighting, sanitation and ventilation; or

(c) the premises are not provided with adequate precautions against fire and satisfactory means of escape in case of fire and equipped with suitable fire-fighting appliances.

(4) Registration under this section shall, unless revoked, remain in force for such period, not exceeding thirteen months as may be fixed by the Corporation.

(5) An application for registration or renewal of registration under this section shall be made in writing to the Corporation by the owner or occupier of the premises to which the application relates and every such application shall state—

(a) the address or situation of the premises to which the application relates; and

(b) such other information regarding the premises to be registered and the manner in which the premises are proposed to be used as the Corporation may reasonably require.

(6) Any person making application for registration or renewal of registration under this section shall, when making application, pay to the Corporation in respect thereof such fee not exceeding one pound as the Corporation may prescribe.

(7) The Corporation may at any time revoke the registration of any premises if they are of the opinion that the requirements of subsection (3) of this section are no longer satisfied.

(8) (a) The Corporation may on registering or renewing the registration of any premises for use as an entertainment club impose conditions as to—

(i) the maintenance of public order and safety;

(ii) the maintenance in proper order of the precautions against fire, means of escape in case of fire, fire-fighting appliances and means of lighting the premises;

(iii) the maintenance in safe condition of means of heating the premises; and

(iv) the hours of opening and closing the premises for the entertainment club so as to ensure that nuisance is not likely to be caused to residents in the neighbourhood.

(b) Any person who contravenes a condition imposed under this subsection shall be liable to a fine not exceeding ten pounds.

(9) Before refusing to register or renew the registration of any premises or revoking the registration of any premises the Corporation shall give to the person applying for registration or renewal of registration or in whose name the premises are registered an opportunity of appearing before and of being heard by a committee of the council, and if so required by him, the Corporation shall within seven days of their decision give to him a statement of the grounds on which it was based.

(10) Any person aggrieved by the refusal of the Corporation to register or renew the registration of any premises or by the

PART V
—cont.

revocation of any such registration or by any condition imposed on registration under this section may within twenty-one days from the date of the notice of such refusal, revocation or condition appeal to a magistrates' court.

1933 c. 25.
1964 c. 64.
1965 c. 15.

(11) If any premises are used by an entertainment club which is being conducted in a disorderly manner, or while being used by an entertainment club have been habitually used for an unlawful purpose or for indecent displays or as a resort of criminals or prostitutes, or if during the last preceding twelve months there have been at the premises while so being used illegal sales of intoxicating liquor, or if during that period any drug to which the Pharmacy and Poisons Act, 1933, or the Drugs (Prevention of Misuse) Act 1964 or the Dangerous Drugs Act 1965 applies has been unlawfully supplied by a person to any other person resorting to the premises while so being used—

- (a) any person concerned in the organisation or management of the entertainment club; and
- (b) any other person who, knowing or having reasonable cause to suspect that the premises were used in such manner or for any such purpose as aforesaid—
 - (i) allowed the premises to be so used; or
 - (ii) let the premises or otherwise made the premises available to any person by whom an offence in connection with such use has been committed;

shall be liable to a fine not exceeding fifty pounds.

(12) Any duly authorised officer of the Corporation, on producing if so required some duly authenticated document showing his authority, and any police officer shall have a right to enter, at all reasonable times, any premises used by an entertainment club for the purpose of ascertaining—

- (a) whether there is, or has been, in or in connection with the premises, any contravention of the provisions of this section or of any condition imposed under the powers of this section;
- (b) whether or not circumstances exist which would authorise the Corporation to take any action under this section.

(13) The provisions of subsections (2), (3) and (4) of section 287 of the Act of 1936 shall apply to entry into any premises for the purposes of subsection (12) of this section as they apply to entry into premises for the purposes of subsection (1) of that section.

(14) Where an offence under this section committed by a body corporate is proved to have been committed with the consent or connivance of, or to be attributable to any neglect on the part of, any director, manager, secretary or other similar

officer of the body corporate or any person who was purporting to act in any such capacity, he, as well as the body corporate, shall be guilty of that offence and be liable to be proceeded against and punished accordingly.

PART V
—cont.

(15) (a) Nothing in this section shall apply to—

- (i) any building of a description specified in subsection (5) of section 59 of the Act of 1936 during the time the building is used for the purpose or purposes therein described; or
- (ii) a private house or private flat; or
- (iii) any premises in respect of which there is in force for the time being a justices' on-licence within the meaning of subsection (2) of section 1 of the Licensing Act 1964; or 1964 c. 26.
- (iv) any premises owned by or while used by members of an organisation which holds a certificate of exemption granted by the Secretary of State or the Minister of Housing and Local Government under subsection (6) of section 269 of the Act of 1936 or under paragraph 12 of Schedule 1 to the Caravan Sites and Control of Development Act, 1960, or any branch of any such 1960 c. 62. organisation.

(b) Nothing in this section shall apply to—

- (i) a club registered or licensed under the Licensing Act 1964;
- (ii) a club, organisation or body registered as a charity under section 4 of the Charities Act, 1960; 1960 c. 58.
- (iii) a club provided or maintained by the Corporation;
- (iv) a club, organisation or body for the benefit of which the Corporation have exercised any of the powers conferred upon them by section 4 of the Physical Training and Recreation Act, 1937; 1937 c. 46.
- (v) a club, organisation or body in respect of the use of any premises exclusively and bona fide for the purpose of—
 - (A) games played on a playing field held with those premises;
 - (B) a gymnasium or swimming bath;
 - (C) playing badminton, fives, racquets, squash, bingo, tombola, ten-pin bowling, billiards, chess, dominoes, bridge, whist or any game similar to any of those games.

(c) Nothing in this section shall apply to any premises in respect of which a licence is for the time being in force for—

- (i) the public performance of stage plays; or
- (ii) public music or dancing or other entertainment of the like kind; or
- (iii) a cinematograph exhibition;

PART V
—cont.

provided that the terms, conditions, restrictions and rules attaching to the licence or subject to which the licence has been granted are complied with during the time the premises are used for the purposes of an entertainment club, so far as they relate to precautions against fire, the means of escape in case of fire and the provision of suitable fire-fighting appliances.

Safety of
stands.

25.—(1) As from the appointed day no person shall commence to erect in the borough a stand capable of affording seating or standing accommodation for twenty or more persons at any one time unless he has given notice to the Corporation of his intention to do so, accompanied by a plan and section of the stand and such further particulars as the Corporation may reasonably require, and the Corporation have approved the erection of the stand under this section.

(2) Within five weeks from the receipt of such a notice from any person the Corporation may give him notice that they approve the erection of the stand, but only subject to—

(a) such modifications of the plan, section and particulars submitted to them; and

(b) compliance with such requirements as to maintenance and otherwise;

as may be specified in the notice, being modifications and requirements which appear to the Corporation to be necessary for securing the stability of the stand and protection against fire, and generally for securing the safety of persons to be accommodated thereon.

(3) If a notice given under subsection (1) of this section states the period for which it is proposed that the stand will remain erected, the Corporation shall have regard to that statement in considering what modifications and requirements are to be specified in a notice under subsection (2) of this section, but may by the last-mentioned notice require that the stand shall be pulled down and removed within such time from the expiration of that period as may be specified in the notice, or such further time as the Corporation may allow.

(4) The Corporation may at any time within the said five weeks give notice that they approve the erection of the stand in accordance with the plan, section and particulars submitted to them; and, if within the said five weeks the Corporation have not given notice under subsection (2) of this section, they shall be deemed for the purposes of this section to have so approved the erection of the stand.

(5) Any person aggrieved by a requirement or other decision of the Corporation under this section may appeal to a magistrates' court.

PART V
—cont.

(6) If any person—

- (a) commences to erect in contravention of subsection (1) of this section a stand capable of affording seating or standing accommodation for twenty or more persons at any one time; or
- (b) erects such a stand otherwise than in accordance with a plan, section and particulars submitted to the Corporation under the said subsection (1), or, if notice has been given of any modifications under subsection (2) of this section, otherwise than in accordance with the said plan, section and particulars as modified by the notice; or
- (c) being the owner or occupier of such a stand erected otherwise than as aforesaid, allows twenty or more persons to be on the stand at any one time; or
- (d) being the owner or occupier of such a stand, fails to comply with any requirement imposed by a notice under subsection (2) or subsection (3) of this section;

he shall be liable to a fine not exceeding fifty pounds and, in the case of any such failure, to a daily fine not exceeding forty shillings:

Provided that nothing in this subsection shall apply to a stand the erection whereof was commenced before the appointed day.

(7) For the purposes of paragraph (a) of subsection (1) of section 287 of the Act of 1936, as applied by this Act, the provisions of this section shall be provisions which it is the duty of the Corporation to enforce.

(8) The provisions of this section shall not apply to a stand erected by the proprietor of a travelling circus, roundabout or amusement fair for the purposes of his business as such.

(9) In this section “stand” includes a structure, but does not include a building, or extension of a building, to which building byelaws or building regulations are applicable.

26.—(1) As from the appointed day no person shall at any place in the borough to which this section applies— Touting,
hawking, etc.

- (a) importune any person by touting for a hotel, lodging-house or refreshment house, for a shop, for a theatre, garden, pier or place of amusement or for a boat, hackney carriage or public service vehicle; or
- (b) without the consent of the Corporation, which may be given on such terms and conditions as they think fit—
 - (i) hawk, sell or offer for sale any article or commodity; or

PART V
—cont.

(ii) take a photograph by way of trade or business of any person except as mentioned in subsection (5) of this section.

(2) The prohibition imposed by paragraph (a) of subsection (1) of this section shall not apply to touting for a boat on the seashore by or on behalf of the owner thereof and which is not to the annoyance of any person or a nuisance.

(3) The Corporation shall not withhold their consent under paragraph (b) of subsection (1) of this section to the sale or offering for sale by any person of newspapers and periodicals except on the ground that their consent to such sale or offering for sale has already been given to a reasonably sufficient number of other persons.

(4) The prohibition imposed by sub-paragraph (i) of paragraph (b) of subsection (1) of this section shall not apply to a sale or offering for sale to persons residing in, or employed at, premises in or adjoining a place to which this section applies.

(5) The prohibition imposed by sub-paragraph (ii) of paragraph (b) of subsection (1) of this section shall not apply to the taking of a photograph for the purpose of making it available for publication in a newspaper or periodical if the photographer is employed as such by or on behalf of the owner or publisher of a newspaper or periodical, or carries on a business which consists in, or includes, selling or supplying photographs for such publication.

(6) This section applies to any place—

(a) in or on an esplanade, parade, promenade, marine drive or public walk;

(b) in a park, pleasure ground or open space within the meaning of the Open Spaces Act, 1906, which is provided by the Corporation, or under their management and control;

(c) on the seashore;

(d) in any street or part of a street (not being a street belonging to or repairable by the docks board) to which this section applies by virtue of byelaws made by the Corporation under this section.

(7) Any person aggrieved by the refusal of the Corporation to give their consent under paragraph (b) of subsection (1) of this section, or by any terms or conditions attached to a consent given by the Corporation thereunder, may appeal to a magistrates' court.

(8) If any person contravenes any of the foregoing provisions of this section, or any term or condition upon which any consent is given thereunder, he shall be liable to a fine not exceeding ten pounds.

(9) In this section the expression “seashore” shall not have the extended meaning given by subsection (2) of section 3 (Interpretation) of this Act.

27.—(1) If a vehicle is left in the borough elsewhere than on a road or in an off-street parking place provided under section 81 of the Act of 1960, the Corporation may, with the consent of the occupier of the land on which the vehicle is left and after giving not less than seven days’ notice to the owner of the vehicle, cause it to be removed: Removal of vehicles.

Provided that, where the vehicle appears to the Corporation to be abandoned—

- (a) the Corporation may cause it to be removed without the consent of the occupier of the land if they are unable after reasonable inquiry to ascertain his name and address; and
- (b) the Corporation may cause the vehicle to be removed without notice to the owner thereof if they are unable after reasonable inquiry to ascertain his name and address.

(2) The provisions of any regulations for the time being in force under section 43 of the Act of 1960, about the method of removing vehicles and their loads and arrangements for the safe custody of vehicles and their loads shall apply to vehicles removed under this section.

(3) Section 15 of the Road Traffic and Roads Improvement Act, 1960, and any order for the time being in force under that section shall apply to a vehicle removed under this section as if it had been removed from a road in pursuance of regulations under section 43 of the Act of 1960. 1960 c. 63.

(4) For the purpose of the said section 15 and any such order as applied by the last preceding subsection “the appropriate authority” means the Corporation and any reference in regulations made under section 43 of the Act of 1960, to a charge to payment of which the Corporation are entitled under the said section 15 shall be construed accordingly.

(5) If it appears to the Corporation that a vehicle removed under this section has been abandoned the Corporation may sell

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—cont.

or otherwise dispose of it subject to compliance with such regulations as are for the time being in force under section 43 of the Act of 1960, relating to the disposal of vehicles abandoned on roads; and the provisions of any regulations under that section relating to the proceeds of sale of vehicles abandoned on roads and to the recoupment of costs incurred in connection with the disposal of such vehicles shall, with the necessary modifications apply to the sale and disposal of vehicles under this subsection.

(6) In this section “owner” in relation to a vehicle which is the subject of a hiring agreement or hire-purchase agreement means the person in possession of the vehicle under that agreement and “road” means a highway or other road to which the public has access and includes bridges over which the road passes.

1957 c. xxxi. (7) Section 15 (Removal of vehicles from parking places) of the Barry Corporation Act 1957, is hereby repealed.

PART VI

FIRE PREVENTION

Means of
ingress to
and egress
from certain
buildings.

28.—(1) Section 59 of the Act of 1936 in its application to the borough, shall have effect as if—

- (a) in paragraph (b) of subsection (5) of that section for the words “and in which more than twenty persons are employed” there were substituted the words “or in which more than ten persons are employed”; and
- (b) in paragraph (d) of the said subsection (5) the words “and any premises used for giving instruction in dancing” were added at the end of that paragraph; and
- (c) there were added at the end of the said subsection (5) the following proviso:—

“Provided also that this section shall not apply to such premises as are referred to in paragraph (b) of this subsection if—

- (i) only the ground floor of the building is used for the purposes of; and
- (ii) not more than five persons are employed in; the restaurant, shop, store or warehouse, as the case may be.”

(2) The provisions of the said section 59 in its application to the borough shall be construed so as to enable the Corporation to require that such first-aid fire appliances as the Corporation

deem necessary shall be installed in premises to which the said section applies other than premises in respect of which a licence under the Cinematograph Acts, 1909 and 1952, is for the time being in force:

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—cont.

Provided that any notice served by the Corporation under subsection (2) of the said section 59 requiring the installation of first-aid fire appliances may be served on the owner or the occupier of the building.

(3) The provisions of subsection (2) of this section shall cease to apply in relation to any premises to which the Factories Act, 1961 c. 34, 1961, applies on the coming into force in relation to those premises of regulations made under that Act and relating to the same subject-matter as the said subsection.

29.—(1) Section 60 of the Act of 1936 in its application to the borough shall have effect as if—

Provision of
means of
escape from
fire in
certain
buildings.

(a) in paragraph (b) of subsection (4) of that section the words “boarding school” were omitted and the words “old persons’ home” were inserted after the words “children’s home”; and

(b) in paragraph (c) of subsection (4) of that section the word “school” were inserted after the word “shop” and the words “for persons employed on the premises” were omitted.

(2) (a) The Corporation may by notice require the person having control of a building to which the said section 60, as amended by subsection (1) of this section, applies (other than a house let in flats) to keep unobstructed such passages and gangways as are specified in the notice and, if he fails to do so, he shall be liable to a fine not exceeding twenty pounds.

(b) A person served with a notice under this subsection may appeal to a magistrates’ court on any of the following grounds:—

- (i) that the requirement is not justified by the terms of this subsection;
- (ii) that there has been some informality, defect or error in, or in connection with, the notice;
- (iii) that the requirement of the notice is unreasonable in character or extent or is unnecessary.

(3) Section 76 (Means of escape from building in case of fire) of the Barry Urban District Council Act, 1913, is hereby repealed 1913 c. xcix.

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—cont.
1952 c. li.

and section 85 (Further provisions as to means of escape from fire in case of certain buildings) of the Glamorgan County Council Act, 1952, shall cease to have effect within the borough.

Parts of
buildings used
for storage
of inflammable
substances.

30.—(1) The occupier of any part of a building to which this section applies which, after the appointed day, is used or intended to be used for the storage for the purposes of sale or trade of any substances to which this section applies (in this section referred to as “the storage part of the building”) shall give notice to the Corporation of such use or intention to use, as the case may be, and such notice shall be given—

- (a) in the case of any part of a building which is so used immediately before the appointed day, within twenty-one days after the appointed day; and
- (b) in the case of any part of a building which after the appointed day is intended to be so used, not less than twenty-one days before such use takes place.

(2) The Corporation may, if they are of the opinion that such storage—

- (a) is in such quantity as to be likely to prove a source of danger to any person inhabiting or using any part of the building as a habitable room or as a place where any person works; or
- (b) is in such manner as to be liable to cause fire or explosion;

by counter-notice require the occupier of any part of a building in respect of which a notice has been served under subsection (1) of this section to provide within such reasonable period as may be specified in the counter-notice—

- (i) adequate means for extinguishing fire and safeguards to prevent the spread of fire to or from the storage part of the building;
- (ii) means of ready escape in case of fire from the storage part of the building and any other part of the building being a part comprising a habitable room or a place in which any person works if that other part communicates directly or indirectly with or is adjacent to or constructed at a higher level than the storage part of the building;
- (iii) notices in or on the storage part of the building indicating the existence of danger from fire.

(3) (a) An authorised officer of the council may, in respect of any premises which he has entered in pursuance of the powers conferred by section 287 of the Act of 1936, purchase and test

samples of any substance stored on such premises for the purposes of sale or trade in order to ascertain whether or not such substance is a substance to which this section applies.

PART VI
—cont.

(b) The result of any test of a sample taken by an authorised officer of the council by virtue of this section shall not be admissible as evidence in any legal proceedings under this section, including an appeal under subsection (6) of this section, unless the following requirements have been complied with: that is to say, the said officer shall, forthwith after taking the sample, notify the occupier of the building of his intention to have it tested and shall there and then divide the sample into three parts, shall cause each part to be placed in a suitable container which shall be sealed up and marked, and shall—

- (i) deliver one part to the occupier of the building;
- (ii) retain one part for future comparison; and
- (iii) if he thinks fit to have a test made, submit one part to be tested.

(4) The occupier of any building who—

- (a) by reason of a restriction affecting his interest in the building is unable to execute works for the purpose of complying with a requirement of the Corporation under this section; or
- (b) considers that the owner of the building or any other person having an interest therein should contribute towards the cost of the execution of works as aforesaid and is unable to agree with the owner or such other person as to whether such a contribution should be made or as to the amount thereof;

may apply to the county court for an order to enable the execution of such works as may be necessary for the purpose of complying with such requirement or, as the case may be, to direct the owner of the building or any other person who appears to the court to have an interest therein to contribute towards the cost of such works as aforesaid such an amount as appears to the court in all the circumstances of the case to be fair and reasonable and the court may on such application make an order in respect of either or both of the matters aforesaid accordingly.

(5) (a) If, after the requirements of the Corporation under subsection (2) of this section have been complied with and a certificate to that effect has been granted by the Corporation, any material extension or material structural alteration of the building to which the certificate relates is made, the Corporation

PART VI
—cont.

may serve a further counter-notice varying any requirement made under subsection (2) of this section in respect of that building.

(b) Upon compliance being made with such varied requirements, the Corporation shall amend the certificate or grant a new certificate in respect of the building, but if anything required to be provided in accordance with a further counter-notice served under this subsection is not provided within such reasonable time as may be specified in the further counter-notice, the Corporation may cancel the certificate granted under this subsection in respect of the building.

(6) (a) Any person aggrieved by a requirement of the Corporation under subsection (2) of this section, or by a variation of a requirement under subsection (5) of this section, may appeal to a magistrates' court on any or all of the following grounds:—

- (i) that the requirement or variation is not justified by the terms of this section;
- (ii) that the requirement or variation is unreasonable in character or extent;
- (iii) that the period specified in the counter-notice is not reasonably sufficient for the purpose of complying with the requirements of the counter-notice.

(b) Any person aggrieved by the refusal of the Corporation to grant or amend a certificate under this section or by the cancellation of a certificate under subsection (5) of this section may appeal to a magistrates' court.

(7) If any person contravenes the provisions of this section he shall be liable to a fine not exceeding twenty pounds and to a daily fine not exceeding five pounds.

(8) This section applies to—

(a) any building in the borough which is used, or intended to be used, partly for the storage for the purposes of sale or trade of any substance to which this section applies and partly as a habitable room or a place in which any person works, if the part used as a habitable room or a place in which a person works communicates directly or indirectly with or is adjacent to or constructed at a higher level than the storage part of the building;

(b) (i) any substance which is gaseous at a temperature of 33 degrees Fahrenheit at atmospheric pressure and which is inflammable; and

- (ii) any other substance which when tested by a method approved by the Secretary of State gives off an inflammable vapour at a temperature of less than 150 degrees Fahrenheit:

Provided that this section shall not apply to any building in which no substance to which this section applies is stored, other than—

- (i) one or more of the substances to which sections 1 and 2 of the Petroleum (Consolidation) Act, 1928, apply; or 1928 c. 32.
- (ii) any substance which does not, when tested by a method approved by the Secretary of State, give off an inflammable vapour at a temperature of less than 80 degrees Fahrenheit, and which is stored in securely closed metal containers in good condition and containing not more than five gallons each; or
- (iii) any substance which does not, when tested by a method approved by the Secretary of State, give off an inflammable vapour at a temperature of less than 80 degrees Fahrenheit, and which is stored in separate glass or glazed earthenware vessels securely stoppered and the aggregate amount of all such substances stored in such manner would not, if the whole contents were in bulk, exceed twenty-five gallons.

(9) In this section “building” where used in relation to the storage of substances therein includes the curtilage of the building.

(10) Nothing in this section shall apply to premises which are subject to the Factories Act, 1961, or the Offices, Shops and Railway Premises Act 1963, or regulations made under either of 1961 c. 34. 1963 c. 41. those Acts.

31.—(1) As from the appointed day any person intending to instal or place oil-burning equipment in any building in the borough whether erected before or after the passing of this Act or on any land in the borough shall give not less than fourteen days’ notice to the Corporation of his intention so to do. Oil-fired boilers.

(2) (a) The Corporation may make byelaws for securing that in relation to any oil-burning equipment so installed or placed after the coming into operation of the byelaws proper arrangements will be made for preventing or reducing danger from fire.

(b) Byelaws made under this section may include provisions—

- (i) prescribing in connection with the installation or placing of oil-burning equipment in any such building or on any such land as aforesaid the works, apparatus and

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—cont.

fittings and fire-fighting appliances to be provided and the mode of arrangement of any such works, apparatus, fittings and appliances; and

- (ii) empowering the Corporation if they are satisfied that proper arrangements will be made for preventing or reducing danger from fire to approve the installation or placing of any equipment notwithstanding that it does not comply with the appropriate specification for such equipment contained in the byelaws.

(3) (a) Any oil-burning equipment installed or placed in accordance with plans and specifications submitted to, and passed by, the Corporation shall for the purposes only of this section, be deemed to be approved by the Corporation as complying with the appropriate specification for such equipment contained in byelaws made under this section in respect of all matters shown in the plans and specifications so passed.

(b) If the Corporation do not, within two months from the submission of plans and specifications of any equipment under this subsection, notify the person by whom they were submitted of the rejection or passing of the said plans and specifications, they shall be deemed to have passed them.

(4) If, in relation to the installation or placing of any oil-burning equipment in any building or on any land, the Corporation are satisfied that proper arrangements will be made for preventing or reducing danger from fire, they may on the application of the person proposing to instal or place such equipment, approve the installation or placing of the equipment notwithstanding that it may not comply with the appropriate specification for such equipment contained in byelaws made under this section.

(5) (a) Any person aggrieved by the refusal of the Corporation to approve the installation or placing of any equipment under any byelaw made under sub-paragraph (ii) of paragraph (b) of subsection (2) of this section may within twenty-one days from the receipt of notification of the refusal appeal to the Secretary of State.

(b) Where an appeal is brought under this subsection the Secretary of State may dismiss or allow the appeal or may vary the decision of the Corporation against which the appeal is made.

(c) The decision of the Secretary of State on any such appeal shall have effect as if it were a decision of the Corporation given under the byelaw.

(6) (a) If any person installs oil-burning equipment in any building or on any land in the borough without giving notice to the Corporation in accordance with subsection (1) of this section he shall be liable to a fine not exceeding fifty pounds.

(b) If any person contravenes any byelaw made under subsection (2) of this section he shall be liable to a fine not exceeding fifty pounds and if—

(i) that person after conviction of the contravention; or

(ii) any other person after notice of the conviction has been served on him by the Corporation;

uses the oil-burning equipment in contravention of that byelaw he shall be liable to a fine not exceeding ten pounds for each day on which he so uses it.

(7) (a) In this section—

the expression “oil-burning equipment” means a boiler designed or adapted for the combustion of oil and includes the burner, the storage tanks and the apparatus, fittings, devices and catch-pits and any other equipment used for or in connection with the heating of the boiler;

the expression “boiler” means a boiler, furnace, heater, oven or similar plant;

the expression “storage tank” means a tank, container or device designed or adapted for the purpose of supplying oil to a boiler;

the expression “apparatus and fittings” includes pipes and pipe fittings, taps, valves, pumps, gauges, vessels, fans and filters.

(b) References in this section to the installation or placing of oil-burning equipment in any building or on any land shall be construed as including the installation or placing of oil-burning equipment which is partly in a building and partly on land outside the building.

(8) Nothing in this section or any byelaws made thereunder shall apply to—

(a) any oil-burning equipment if the storage tank or tanks supplying or designed or adapted to supply oil to the boiler has or have a total capacity not exceeding seven hundred and fifty gallons; or

(b) any oil-burning equipment installed in any building in respect of which a licence under the Theatres Act, 1843, 1843 c. 68. or the Cinematograph Acts, 1909 and 1952, is for the time being in force; or

(c) the installation of any oil-burning equipment by the Central Electricity Generating Board, the South Wales Electricity Board, the Wales Gas Board, the docks

PART VI
—cont.

board or the railways board for the purposes of their respective undertakings:

Provided that the exemption conferred by this paragraph shall not extend—

- (i) to houses; or
- (ii) to buildings used as offices or showrooms (other than, in the case of the railways board, buildings so used which form part of a railway station).

(9) Section 250 of the Act of 1933 shall in its application to byelaws made under this section be construed as if it had been amended by the insertion of the words “ or confirm with modifications ” after the word “ confirm ” in the second place where that word occurs in subsection (6) thereof.

1961 c. 34.

(10) The provisions of any byelaw made under this section shall cease to apply in relation to any premises to which the Factories Act, 1961, applies on the coming into force in relation to those premises of regulations made under that Act and relating to the same subject-matter as this section.

Underground
parking
places.

32.—(1) Where plans of any proposed work deposited with the Corporation in pursuance of building byelaws or building regulations include proposals for the construction, alteration or extension of an underground parking place or the alteration of a building for use as an underground parking place, the Corporation may, notwithstanding anything in section 64 of the Act of 1936, reject the plans unless there are put before them such proposals as appear to them to be satisfactory for preventing or reducing danger from fire, being proposals relating to all or any of the following matters:—

- (a) the provision of adequate means of ventilation of the underground parking place;
- (b) the provision of electrical and mechanical and heating equipment in the underground parking place;
- (c) the provision of fire-fighting equipment and appliances in connection with the underground parking place;
- (d) the provision of safe and adequate means of ingress to and egress from the underground parking place;
- (e) the provision of adequate means of access to the underground parking place for fire brigade appliances and personnel.

(2) Subsection (2) of section 64 and subsections (2) to (5) of section 65 of the Act of 1936 shall have effect as if this section were a section of that Act.

(3) If any question arises between the Corporation and a person who has executed or proposes to execute any work—

(a) whether the work is such as is mentioned in subsection (1) of this section; or

(b) whether the Corporation ought to have treated as satisfactory any proposal put before them in pursuance of the said subsection;

that question may, on the application of that person, be referred to the Secretary of State for determination, and the Secretary of State shall determine any question submitted to him under paragraph (a) of this subsection or, as the case may be, may direct the Corporation to treat as satisfactory the said proposal or the said proposal as modified by him.

(4) If, after plans of any underground parking place have been passed by the Corporation in consequence of any proposals made under subsection (1) of this section, it appears to the Corporation that any such proposal has not been carried into effect or is not being observed, the Corporation may by notice to the owner or occupier of the underground parking place prohibit its use as an underground parking place until the proposal has been carried into effect or is being observed.

(5) If any person on whom a notice has been served under subsection (4) of this section uses the underground parking place or permits it to be used as an underground parking place without giving effect to or securing the observance of any proposal specified in the notice, he shall be liable to a fine not exceeding twenty pounds and to a daily fine not exceeding five pounds.

33.—(1) Without prejudice to the provisions of section 32 (Underground parking places) of this Act, the Corporation may by notice to the owner or occupier of any underground parking place in the borough which is first brought into use after the passing of this Act require compliance with such conditions as to the use of the underground parking place as may be specified in the notice for the purpose of preventing or reducing danger from fire therein, and in the case of any underground parking place as aforesaid in respect of which plans are not deposited with the Corporation in pursuance of building byelaws or building regulations, the Corporation may by notice to the owner or occupier thereof require him to comply with such conditions as aforesaid and with such other conditions with regard to the matters specified in paragraphs (a) to (e) of subsection (1) of the said section 32 as the Corporation think fit.

(2) If any person on whom a notice under this section has been served fails to comply with any requirements specified in the notice, he shall be liable to a fine not exceeding twenty pounds and to a daily fine not exceeding five pounds.

PART VI
—cont.

(3) A person on whom a notice under this section has been served may within twenty-one days of the service of the notice appeal to the Secretary of State on the ground that any requirement specified in the notice is not justified by this section or is unreasonable in character or extent or is unnecessary.

(4) If so required by any such person the Corporation shall deliver to him a certificate signed by the town clerk stating the grounds on which the Corporation have made any requirement under this section, and where such person appeals to the Secretary of State against such requirement the certificate shall be submitted by him to the Secretary of State at the same time that notice of appeal is given, or as soon as possible after the receipt by such person of the certificate.

(5) On consideration of any such appeal the Secretary of State may, if he thinks fit, confirm, modify, alter or annul any requirement made by the Corporation under this section.

Interpretation
and powers
of entry for
purposes of
last two
foregoing
sections.
1928 c. 32.

34.—(1) In the last two foregoing sections the expression “underground parking place” means a building or part of a building (other than a building or part of a building in respect of which a licence issued by the Corporation or the Secretary of State under section 2 or section 3 of the Petroleum (Consolidation) Act, 1928, is in force or a building or part of a building to which regulations made by the Secretary of State under section 10 of that Act apply) which provides waiting space or storage space, either alone or in addition to any other facility or service, for motor cars or other vehicles and of which any part of the floor is situated more than 4 feet below the surface of the ground adjoining or nearest to such building or part of a building.

(2) For the purposes of paragraph (a) of subsection (1) of section 287 of the Act of 1936 the provisions of the last two foregoing sections shall be provisions which it is the duty of the Corporation to enforce.

Disposal of
dangerous
containers.

35.—(1) No person shall within the borough dispose of or deposit any container (including a container attached to a vehicle or machine) which has been used for the storage of inflammable or explosive substance and is no longer used for that purpose unless he takes all such steps as may be reasonably necessary to prevent danger from the container.

(2) If any person contravenes the provisions of subsection (1) of this section he shall be liable to a fine not exceeding twenty

pounds and the Corporation may take such steps as may be reasonably necessary to prevent danger from the container and may recover from that person the expenses incurred by them in so doing.

PART VI
—cont.

PART VII

WINDOW CLEANERS

36. As from the appointed day no person shall within the Window
borough— cleaners to
be registered.

- (a) carry on the trade of window cleaner; or
- (b) perform the duties of window cleaning while employed by a person carrying on the trade of window cleaner;

unless he is registered by the Corporation under this Part of this Act.

37.—(1) An application for registration under this Part of As to
this Act— registration
of window
cleaners.

- (a) shall be made in writing to the Corporation;
- (b) shall be made by or on behalf of the person requiring to be registered;
- (c) may be made by such person on behalf of any person employed by him or proposed to be employed by him as aforesaid;
- (d) shall be in such form as the Corporation shall from time to time require;
- (e) shall be signed by the applicant; and
- (f) shall contain such information as the Corporation may reasonably require with respect to the applicant and every person employed by him as aforesaid.

(2) Registration under this Part of this Act shall remain in force until the 31st December next following the issue of the certificate of registration under section 38 (Issue of certificate of registration) of this Act.

38. The Corporation shall as soon as reasonably practicable Issue of
after the receipt of an application under this Part of this Act certificate of
register the person by whom or on whose behalf the application registration.
is made as a person authorised to carry on the trade of window
cleaner or to perform the duties of window cleaning (as the case
may be) and shall issue a certificate of such registration.

PART VII
—cont.
Penalties.

39. On and after the appointed day—

- (a) any person who carries on the trade of window cleaner; and
- (b) anyone employed by such person who performs the duties of window cleaning;

without being registered under this Part of this Act shall be liable to a fine not exceeding five pounds and to a daily fine not exceeding one pound.

PART VIII

ANIMAL FOOD AND SLAUGHTER OF ANIMALS

Interpretation
of this Part
of Act.

40. In this Part of this Act—

1955 c. 16.
(4 & 5 Eliz. 2).

“animal feeding meat” means any flesh of cattle, horses, asses, mules, swine, sheep or goats which is sold or intended for sale for consumption by any animal and includes any such flesh, whether cooked or uncooked, and whether alone or accompanied by or mixed with any other substance, but does not include any residuals which have been sterilised in a manner not less effective than that prescribed by any regulations for the time being in force under the Food and Drugs Act, 1955, resulting from the refining or processing of any such flesh at premises to which the provisions of sections 107 and 108 of the Act of 1936 are applicable;

“authorised officer” means any officer who is, by virtue of the Food and Drugs Act, 1955, an authorised officer for the purpose of the examination and seizure of meat under the provisions of Part I of that Act relating to food unfit for human consumption;

“flesh” includes any part of an animal;

“slaughterhouse” has the same meaning as in section 135 of the Food and Drugs Act, 1955;

“knacker’s yard” means any premises used in connection with the business of slaughtering, flaying or cutting up animals the flesh of which is not intended for human consumption;

“premises” does not include a knacker’s yard or slaughterhouse;

“Meat Inspection Regulations” means the Meat Inspection Regulations, 1963, and includes any regulations made under section 13 of the Food and Drugs Act, 1955, which replace those regulations.

41.—(1) The Corporation may make byelaws—

PART VIII

—cont.

(a) for regulating the construction and equipment of any premises in the borough at or from which animal feeding meat is— Byelaws as to sale, etc., of animal feeding meat.

(i) prepared for sale;

(ii) sold or offered or exposed for sale; or

(iii) deposited for the purpose of sale or preparation for sale;

(b) for regulating the cleanliness and sanitary condition of such premises and the provision of suitable storage therein for animal feeding meat.

(2) Nothing in any byelaw made under subsection (1) of this section shall extend or apply to any premises used for the sale or offer or exposure for sale of animal feeding meat—

(a) in tins or other containers effectually sealed and having attached thereto a notice of adequate size, distinctly and legibly printed and conspicuously visible to the effect that the animal feeding meat is for animal consumption only;

(b) in the form of dog biscuits or other articles of a similar nature;

which premises are not otherwise used for any purpose in connection with the preparation, storage or sale of animal feeding meat.

(3) For the purposes of paragraph (a) of subsection (1) of section 287 of the Act of 1936 as applied by this Act the provisions of any byelaws made under this section shall be provisions which it is the duty of the Corporation to enforce.

(4) Nothing in this section shall affect the operation of the Diseases of Animals Act, 1950, or of any order, licence or act of 1950 c. 36. any Minister made, granted or done thereunder or having effect by virtue of subsection (2) of section 89 thereof.

42.—(1) (a) As from the appointed day and subject to the provisions of this subsection, no premises in the borough shall be used for the sale or offer or exposure for sale or deposit or consignment for sale or preparation for sale of animal feeding meat, unless such premises are registered under this section for that purpose by the Corporation, and a person who uses any premises in contravention of the provisions of this subsection shall be liable, in the case of a first offence, to a fine not exceeding ten pounds and, in the case of a subsequent offence, to a fine not exceeding fifty pounds. Registration of premises used in connection with sale, etc., of animal feeding meat.

PART VIII
—cont.

(b) Subject to the following provisions of this subsection the Corporation shall, on the application of the occupier of or of a person proposing to occupy any premises, register those premises for the purposes of this subsection.

(c) If it appears to the Corporation that any premises for the registration of which application has been made under this subsection or which are registered under this subsection do not satisfy the requirements of any byelaws made under the last foregoing section, or are otherwise unsuitable for use for the purpose for which they are proposed to be used or are being used, the Corporation shall serve on the applicant for registration or (as the case may be) on the occupier for the time being of the premises a notice stating the place and time not being less than twenty-one days after the date of the service of the notice at which they propose to take the matter into consideration and informing him that he may attend before a committee of the council with any witnesses whom he desires to call at the place and time mentioned to show cause why the Corporation should not for reasons specified in the notice refuse the application or (as the case may be) cancel the registration of the premises.

(d) If a person on whom a notice is served under the last foregoing paragraph fails to show cause to the satisfaction of the Corporation, they may refuse the application or (as the case may be) cancel the registration of the premises and shall forthwith give notice to him of their decision in the matter and shall, if so required by him, within fourteen days of their decision give to him within forty-eight hours a statement of the grounds on which it is based.

(e) A person aggrieved by the decision of the Corporation under this subsection to refuse to register any premises or to cancel the registration of any premises may appeal to a magistrates' court.

(f) Upon any change in the occupation of premises registered under this section, the incoming occupier shall if he intends to use them for the purpose for which they are registered forthwith give notice of the change to the Corporation who shall thereupon make any necessary alteration in their register. If a person required to give a notice under this paragraph fails to do so he shall be liable to a fine not exceeding five pounds.

(2) Nothing in subsection (1) of this section shall extend or apply to any premises used for the sale or offer or exposure for sale of animal feeding meat—

(a) in tins or other containers, effectually sealed and having attached thereto a notice of adequate size, distinctly and legibly printed and conspicuously visible to the effect that the animal feeding meat is for animal consumption only;

- (b) in the form of dog biscuits or other articles of a similar nature;

which premises are not otherwise used for any purpose in connection with the preparation, storage or sale of animal feeding meat.

(3) For the purposes of paragraph (a) of subsection (1) of section 287 of the Act of 1936 as applied by this Act the provisions of this section shall be provisions which it is the duty of the Corporation to enforce.

43.—(1) As from the appointed day the following provisions shall have effect in the borough with respect to the slaughter of animals any of the following animals, namely, horses, cattle, sheep, goats or pigs, where the animal is slaughtered owing to emaciation or disease, and the Meat Inspection Regulations do not have effect in relation to the slaughtering by reason of its not being for human consumption. Slaughter of animals otherwise than for human consumption.

(2) The owner of any such animal shall comply with the following provisions:—

(a) except in the cases mentioned in paragraph (b) of this subsection, he shall not slaughter it, or cause it to be slaughtered, until he has given notice to an authorised officer of the intended slaughter of it, and not less than twenty-four hours from the giving of the notice have expired;

(b) if, by reason of accidental injury, illness or exposure to infection, it is necessary to slaughter it either before the expiration of twenty-four hours from the giving of such a notice as is required by paragraph (a) of this subsection, or without giving such a notice, he may so slaughter it, or cause it to be so slaughtered; but—

(i) if the slaughter is before the expiration of the said twenty-four hours, he shall retain the carcase intact until the expiration of that period, or until its disposal is approved by an authorised officer, whichever first occurs; or

(ii) if the slaughter is without giving such a notice, he shall give notice thereof to an authorised officer as soon as practicable thereafter, and retain the carcase intact until the expiration of twenty-four hours from the giving of that notice, or until its disposal is approved by an authorised officer, whichever first occurs;

(c) he shall, on the application of an authorised officer made within two weeks from the date of its slaughter, furnish

PART VIII
—cont.

such information within his knowledge as that officer may reasonably require for the purpose of enabling him to trace the disposal of the carcass or any part thereof.

(3) Notwithstanding the requirement imposed by paragraph (b) of subsection (2) of this section on the owner of an animal to retain the carcass intact until the expiration of a period therein mentioned, he may permit a veterinary surgeon or veterinary practitioner—

(a) to send, at any time during that period, to a laboratory a specimen taken from the carcass or the whole carcass; or

(b) to take such a specimen, or the whole carcass, into his possession at any time during that period, and to retain it;

but, where the owner gives such a permission and it is acted upon, he shall give to an authorised officer notice of the action taken within twenty-four hours from the time when it is taken.

(4) Notwithstanding the requirement imposed by paragraph (b) of subsection (2) of this section on the owner of an animal to retain the carcass intact until the expiration of a period therein mentioned, if the slaughter was in a knacker's yard, or the carcass is moved to a knacker's yard immediately after the slaughter, the owner may take, or cause to be taken, from the carcass during that period any part or organ which, in the opinion of the owner, it is necessary so to take therefrom in order to prevent or minimise risk of nuisance or risk of deterioration of the carcass, but if he does so the owner shall during that period retain every part or organ so taken on the premises on which it was so taken, and in such manner as may be requisite for showing to the reasonable satisfaction of an authorised officer from what carcass it was taken.

(5) If the owner of an animal—

(a) contravenes this section or fails to discharge an obligation thereby imposed on him; or

(b) furnishes in response to an application under paragraph (c) of subsection (2) thereof information which he knows to be false;

he shall be liable to a fine not exceeding twenty pounds.

1950 c. 36.

(6) Nothing in this section shall affect the operation of the Diseases of Animals Act, 1950, or of any order, licence or act of the Minister of Agriculture, Fisheries and Food made, granted or done thereunder, or having effect by virtue of subsection (2) of section 89 thereof.

PART IX

FINANCE, SUPERANNUATION, ETC.

44.—(1) The Corporation may borrow—

Power to
borrow.

(a) such sums as may be necessary for any of the purposes of this Act;

(b) without the consent of any sanctioning authority, such sums as may be necessary for paying the costs, charges and expenses of this Act;

and, subject to the provisions of this section, Part IX of the Act of 1933 shall have effect as if money borrowed under this section were borrowed under that Part.

(2) The Corporation shall repay sums borrowed under paragraph (b) of the foregoing subsection within five years from the date of borrowing.

(3) It shall not be lawful to exercise the powers of borrowing conferred by paragraph (a) of subsection (1) of this section except in compliance with any order for the time being in force under section 1 of the Borrowing (Control and Guarantees) Act, 1946. 1946 c. 58.

45.—(1) The Corporation may establish a fund to be called Sea defence “the sea defence reserve fund”, to which they may apply from reserve fund. the general rate fund any sum not exceeding in any financial year the equivalent of a rate of twopence in the pound as ascertained or estimated for the purpose of section 9 of the Rating and Valuation Act, 1925; and the maximum amount standing to the credit of such fund shall from time to time be determined by the Corporation. 1925 c. 90.

(2) (a) Pending the application of the moneys in the sea defence reserve fund to the purposes authorised by subsection (3) of this section such moneys shall (unless applied in any other manner authorised by any enactment) be invested in statutory securities.

(b) Any income arising from the investment of the moneys in the sea defence reserve fund in the manner provided by the foregoing paragraph and any income arising from the application of the fund to the purposes authorised shall be carried to the general rate fund and (subject to the limitations imposed by subsection (1) of this section) an amount equivalent to such income shall be credited to the sea defence reserve fund.

(3) The sea defence reserve fund shall be applicable to the construction of works as a defence against the sea and to make good any damage and to meet any extraordinary claim or demand arising from accident to any of such works and so that if at any time the fund be reduced it may thereafter be again restored to the maximum sum determined by the Corporation and so from time to time as often as such reduction happens.

PART IX
—cont.

(4) Resort may be had to the sea defence reserve fund under the foregoing provisions although such fund may not at the time have reached or may have been reduced below the maximum sum determined by the Corporation.

(5) In this section “statutory securities” means any securities in which trustees are for the time being authorised by law to invest trust funds.

As to proof of continued existence of pensioners.

46. Notwithstanding anything in any other enactment the Corporation shall not be required to make any payment by way of superannuation allowance, pension, compensation or other such payment under any statutory authority to or for the benefit of any person unless satisfactory proof is given to the Corporation, in such manner and at such times as they may from time to time require, of the continued existence of such person.

PART X

MISCELLANEOUS

Acquisition of pictures, etc.

47.—(1) The Corporation may erect and maintain or contribute towards the erection and maintenance of any picture or sculpture in any place provided by or vested in the Corporation.

(2) The Corporation may acquire by agreement or contribute towards the provision of any picture or sculpture for erection and maintenance in accordance with the provisions of subsection (1) of this section and may from time to time enter into and carry into effect a contract for—

- (a) the taking and purchase of any photograph; or
- (b) the production of a picture or sculpture or other work of art, and for the purchase thereof by the Corporation when completed.

1925 c. 90.

(3) The payments to be made by the Corporation under this section shall not in any financial year exceed the equivalent of one-tenth of the product of a penny rate for the borough as ascertained or estimated for the purpose of subsection (2) of section 9 of the Rating and Valuation Act, 1925.

Provision of lectures, etc., by Corporation.

48.—(1) It shall be lawful for the Corporation—

- (a) to provide suitable lecture rooms and to cause lectures to be given on such subjects as the Corporation think fit and to let such rooms and to make reasonable charges for admission to such lectures; and

- (b) to provide suitable rooms for art exhibitions and to provide or permit art exhibitions in such rooms and to let such rooms and to make reasonable charges for admission to such exhibitions:

PART X
—cont.

Provided that—

- (i) the sum to be expended by the Corporation in any one financial year on the provision of lectures; and
- (ii) the sum to be expended by the Corporation in any one financial year on the provision of art exhibitions;

shall not in either case exceed the equivalent of one-third of the product of a penny rate as ascertained or estimated for the purpose of subsection (2) of section 9 of the Rating and Valuation Act, 1925 c. 90. 1925, in addition to any moneys received by the Corporation under the provisions of this section.

(2) The Corporation may provide and sell or authorise the provision and sale of programmes of any lectures or exhibitions given in pursuance of this section.

(3) Nothing in this section shall be taken to dispense with the consent of a Minister of the Crown to any appropriation, lease or other disposition of any lands of the Corporation in any case in which such consent would have been required if this section had not been enacted.

(4) Nothing in this section shall affect the provisions of any enactment by virtue of which a licence is required for the public performance of stage plays or for public music or dancing or other public entertainment of the like kind or a cinematograph exhibition.

49.—(1) The Corporation may incur expenditure in advertising and making known the advantages, facilities and amenities afforded by the borough as a tourist centre, place of historical interest or holiday resort in any manner which the Corporation may think fit and without prejudice to the generality of the foregoing provisions of this section they may for that purpose—

Power to
advertise
advantages
of borough.

- (a) combine with any other organisation, company or person; and
- (b) employ such persons, firms or companies as they think fit.

(2) Any expenditure under this section shall be separate from and additional to the expenditure, if any, of the Corporation under the Local Authorities (Publicity) Act, 1931, or the Health Resorts and Watering Places Act, 1936, and shall not in any financial year exceed the equivalent of three times the product of a penny rate as estimated for the purpose of subsection (2) of section 9 of the Rating and Valuation Act, 1925. 1931 c. 17. 1936 c. 48.

PART X
—*cont.*

Provision of
vehicles in
Porthkerry
Park.

50.—(1) The Corporation may acquire and maintain motor or other vehicles for the conveyance of passengers in Porthkerry Park in the borough while that park belongs to or is controlled by them.

(2) The Corporation may, on such terms and conditions as they may think fit, carry passengers on any such vehicles and may demand and take for any passengers so carried such fares as they may from time to time determine.

(3) The drives, roads and paths in the said park shall, while the said park belongs to or is controlled by the Corporation, be deemed not to be roads for the purposes of section 127 of the Act of 1960.

Power to
require
information as
to ownership
of premises.

51.—(1) The Corporation may for the purpose of enabling them to perform any of their functions under—

- (a) any enactment in force at the passing of this Act which authorises the Corporation to acquire land compulsorily;
- (b) any enactment mentioned in Schedule 1 to this Act; and
- (c) any local enactment in force at the passing of this Act which authorises the Corporation to serve notice upon the owner or occupier of lands or premises requiring the execution by such owner or occupier of works on such lands or premises or which authorises the Corporation to execute works on lands or premises within the borough;

require—

- (i) the occupier and any person having an interest in any premises in the borough and any person who either directly or indirectly receives rent in respect of such premises to state in writing the nature of his own interest therein and the name and address of any other person known to him as having an interest in those premises whether as freeholder, mortgagee, lessee or otherwise or the name and address of any person known to him to receive either directly or indirectly the rent in respect of those premises; and
- (ii) any person who has sold or otherwise disposed of, leased or let any premises in the borough to state in writing the name and address of the person to whom he has sold or otherwise disposed of, leased or let those premises.

(2) Any person who having been required by the Corporation in pursuance of this section to give to them any information fails to give that information or knowingly makes any misstatement in respect thereof shall be liable to a fine not exceeding five pounds.

(3) For the purposes of this section the expression "interest" includes any legal estate or interest in the premises or in any rentcharge issuing out of those premises.

PART X
—cont.

(4) The provisions of any of the enactments referred to in subsection (1) (a) of this section which contain power to require information as to the ownership of premises shall cease to apply to the Corporation in so far as they relate to the same subject-matter as this section.

52.—(1) The powers of the Corporation under section 4 of the Physical Training and Recreation Act, 1937, shall include the power to provide boating facilities, and for that purpose the Corporation may, within the borough, provide and maintain such yacht basins, buildings, slipways, jetties, moorings, starting boxes and other works as may be necessary or expedient for the purpose thereof or in connection therewith. Provision of boating facilities.
1937 c. 46.

(2) Nothing in this section shall affect the application to any operation of sections 34 to 36 of the Coast Protection Act, 1949 (which require the consent of the Board of Trade to certain operations and contain other provisions for the safety of navigation). 1949 c. 74.

53.—(1) Subject to the provisions of subsection (2) of this section, the Corporation may— Protection of seashore and adjoining land from pollution.

(a) cleanse the seashore within the borough and the adjoining land (including land below the level of mean low-water springs) by removing therefrom oil or any mixture containing oil or any other polluting, offensive or injurious substance which may have been deposited thereon by the action of any tidal or other waters; and

(b) for the purpose of preventing the pollution of the seashore within the borough and such adjoining land as aforesaid by any such substance as aforesaid, spray or cause to be sprayed with chemicals or other substances any tidal or other waters, and may do any other thing or take any other measure which in their opinion is likely to achieve that purpose.

(2) The Corporation shall not in exercise of the powers of subsection (1) of this section spray chemical substances or cause chemical substances to be sprayed except with the consent of the Minister of Agriculture, Fisheries and Food.

(3) Nothing in this section or done thereunder shall prejudice or affect the operation of the Sea Fisheries Regulation Act, 1888, 1888 c. 54

PART X
—cont.1945 c. 42.
1955 c. 25.

the Salmon and Freshwater Fisheries Acts, 1923 to 1965, the Water Act, 1945, the Rivers (Prevention of Pollution) Acts, 1951 to 1961, or the Oil in Navigable Waters Act, 1955, or any byelaws from time to time in force made under any of those Acts, or permit the doing of any act which would have been unlawful by virtue of the provisions of the said Acts or of any such byelaw if this section had not been enacted.

(4) The powers conferred on the Corporation by this section shall not be exercised on land held or used by the docks board for the purposes of their undertaking without their consent, but such consent shall not be unreasonably withheld, and any question whether it is unreasonably withheld shall be determined by the Minister of Transport.

(5) In this section “oil” has the same meaning as in the Oil in Navigable Waters Act, 1955.

Research into
matters
concerning
social
conditions, etc.

54. The Corporation may in connection with the exercise of any of their functions contribute, by grants or otherwise, towards the cost of investigations and research undertaken by other bodies or persons into matters affecting the borough relating to—

- (a) social or economic conditions; or
- (b) health or hygiene.

Disposal
of lost and
uncollected
property.

55.—(1) Where any lost or uncollected property is contained in a package, bag or other receptacle, the Corporation may cause such receptacle to be opened and the contents examined, if they deem it necessary to do so, for the purpose either of identifying and tracing the owner of the property or of ascertaining the nature of its contents.

(2) If any lost or uncollected property within three months of coming into the custody of the Corporation be not proved to the reasonable satisfaction of the Corporation to belong to any claimant, it shall thereupon vest in the Corporation:

Provided that any lost or uncollected property which is of a perishable nature and any lost property the custody of which involves unreasonable expense or inconvenience may, notwithstanding that it has not vested in the Corporation under this section, be disposed of at such time and in such manner as the Corporation may think fit, and, if it is sold, the proceeds of sale shall vest in the Corporation at the expiration of three months from the date on which the property came into their custody.

(3) Where any lost property becomes vested in the Corporation in pursuance of this section, the Corporation may, if they think fit, deliver to the person, whether an employee of the Corporation or not, who placed the lost property in the custody of the Corporation, the whole or any part of such property or of the estimated value thereof in cash.

(4) This section shall, in the case of uncollected property placed in the custody of the Corporation on express terms inconsistent with the rights of the Corporation under this section, have effect subject to those terms.

(5) In this section—

the expression “lost property” means any property coming into the custody of the Corporation, after being left on or in any premises occupied by the Corporation to which the public have access; and

the expression “uncollected property” means any property deposited in any cloakroom or parcels store provided by the Corporation for the use of the public in which there is exhibited a notice containing a statement to the effect of subsections (1) and (2) of this section.

56.—(1) No person (except in the execution of some act which he has lawful authority to perform) shall remove or otherwise interfere with any life-saving equipment vested in the Corporation within the borough.

Removal of
property of
Corporation.

(2) If any person contravenes the provisions of this section he shall be liable to a fine not exceeding ten pounds.

57.—(1) If a person for the purposes of obtaining for himself or another person—

False
statements
to obtain
rent rebates,
etc.

(a) the tenancy or occupation of a house belonging to, or at the disposal of, the Corporation; or

(b) a grant, loan, allowance or other payment by or on behalf of the Corporation; or

(c) a reduction of a rent, rate, charge or other payment due or to become due to the Corporation;

knowingly or recklessly makes, or permits to be made, to the Corporation or to any committee of the council or member of the council or employee of the Corporation a statement which is

PART X
—cont.

false in a material particular about his, or that other person's, needs or means he shall be liable to a fine not exceeding fifty pounds or to imprisonment for a term not exceeding three months or to both.

1911 c. 6.

(2) Where the making of a false statement for any of the purposes aforesaid is an offence under any enactment other than the Perjury Act, 1911, it shall not be an offence under this section.

(3) The court by which a person is convicted of an offence under this section may by the conviction adjudge him—

(a) to repay to the Corporation a sum not exceeding the amount of the grant, allowance or other payment, not being a loan, obtained by means of the false statement;

(b) to pay to the Corporation a sum not exceeding the difference between any reduced payment accepted by the Corporation in faith of the false statement and the payment which the Corporation would otherwise have accepted.

1957 c. xxxi.

(4) Section 59 (False statements to obtain rebate, etc.) of the Barry Corporation Act, 1957, is hereby repealed.

Notice of
variation
of rent, etc.

58. The rent for the time being recoverable by the Corporation under a tenancy of any premises forming part of any housing accommodation belonging to the Corporation may be increased or reduced or the terms and conditions of that tenancy may be varied, amended or added to by the service by the Corporation on the tenant of a notice—

(a) specifying the amount of the increase or reduction in rent or the variation or amendment of or addition to the terms and conditions; or

(b) in the case of an increase or reduction in rent, showing in general terms how the increase or reduction in rent has been determined and indicating that the revised rent has been or will be included in the rent book provided by the Corporation;

whether or not such notice is accompanied by a notice to quit, but such increase, reduction, variation, amendment or addition shall not take effect until such date as may be specified in the notice not being earlier than four weeks after the service thereof:

Provided that if before the date specified in the notice the tenant upon whom such notice has been served serves a counter-notice upon the Corporation requiring them to treat the notice as a

notice to quit, the notice shall be deemed to be a notice to quit the premises on the said date or, in the case of an increase or reduction in rent notified by means of a general notice as aforesaid and an entry in the rent book, such later date (not being more than four weeks from the date on which the revised rent is so entered) as the tenant may indicate in the counter-notice.

PART X
—cont.

59. At any time after the Corporation have provided any electronic or mechanical accounting equipment for the purposes of all or any of their accounting work they may by agreement with any other person use or permit that other person to use the said equipment for the purposes of that other person and they may make such charges as may be agreed for the use of the said equipment. Electronic or mechanical accounting equipment.

60.—(1) Any power conferred on an officer of the Corporation by or under any enactment to enter upon and inspect any building or works in course of construction shall include a power to use, free of expense, for the purpose of the entry or inspection, any ladders, scaffolding and plant in or about the building or works. Power to use ladders, etc., for entry or inspection.

(2) If the builder of, or contractor for, any building or works or any person employed by him in or about any building or works—

(a) refuses to give to such an officer all reasonable assistance in the exercise of the powers conferred by this section; or

(b) otherwise obstructs such an officer in the exercise of those powers;

he shall be liable to a fine not exceeding five pounds.

PART XI

GENERAL

61. As respects byelaws made under this Act the confirming authority for the purpose of section 250 of the Act of 1933 shall in the case of byelaws made under section 41 (Byelaws as to sale, etc., of animal feeding meat) of this Act be the Minister of Agriculture, Fisheries and Food, and in any other case shall be the Secretary of State. Confirming authority for byelaws.

62.—(1) Any Minister of the Crown may cause such local inquiries to be held as he may consider necessary for the purpose of any of his functions under this Act. Local inquiries.

PART XI
—cont.

(2) Subsections (2) to (5) of section 290 of the Act of 1933 shall apply in relation to any such inquiry; and for that purpose the definition of “ department ” in subsection (8) of that section shall include any Minister of the Crown having functions under this Act as well as the Ministers therein mentioned.

The appointed day.

63.—(1) In this Act “ the appointed day ” means such day as may be fixed by resolution of the council subject to and in accordance with the provisions of this section.

(2) Different days may be fixed under this section for the purpose of different provisions of this Act.

(3) The Corporation shall cause to be published in a local newspaper circulating in the borough notice—

- (a) of the passing of any such resolution and of the day fixed thereby; and
- (b) of the general effect of the provisions of this Act coming into operation as from that day;

and the date so fixed shall not be earlier than the expiration of one month from the day of publication of the said notice.

(4) Either—

- (a) a copy of any such newspaper containing any such notice; or
- (b) a photostatic or other reproduction certified by the town clerk to be a true reproduction of a page, or part of a page, of any such newspaper bearing the date of its publication and containing any such notice;

shall be evidence of the publication of the notice and of the date of the publication.

(5) Where any provision of this Act coming into operation on a day fixed by resolution under this section requires the licensing or registration of a person carrying on any business, or of premises used for any purpose, it shall be lawful for any person who—

- (a) immediately before that day was carrying on that business, or using any premises for that purpose; and
- (b) had before that day duly applied for the licence or registration required by that provision;

to continue to carry on that business, or to use those premises for that purpose, until he is informed of the decision with regard

to his application, and, if the decision is adverse, during such further time as is provided under subsection (2) of section 65 (Appeals) of this Act. PART XI
—cont.

64. The written consent of the Attorney-General shall be Restriction on
requisite for the taking of proceedings in respect of an offence right to
created by or under this Act by any person other than a party prosecute.
aggrieved or the Corporation.

65.—(1) Section 300 of the Act of 1936 shall apply to appeals Appeals.
to a magistrates' court under this Act; and sections 301 and 302
of that Act shall apply accordingly.

(2) Where any requirement, refusal or other decision of the
Corporation against which a right of appeal is conferred by
this Act—

- (a) involves the execution of any work or the taking of any
action; or
- (b) makes it unlawful for any person to carry on a business
which he was lawfully carrying on up to the time of the
requirement, refusal or decision, or to use premises for
any purpose for which they were lawfully used up to
that time;

then, until the time for appealing has expired or, when an appeal
is lodged, until the appeal is disposed of or withdrawn or fails
for want of prosecution—

- (i) no proceedings shall be taken in respect of any failure
to execute the work, or take the action, nor shall the
Corporation themselves execute the work or take the
action; and
- (ii) that person may carry on that business and use those
premises for that purpose.

66. Section 265 of the Public Health Act, 1875, shall apply to Protection of
the Corporation as if any reference in that section to the said members and
Act of 1875 included a reference to this Act, and as if any reference officers of
in that section to a member of a local authority included a Corporation
reference to a member of a committee of a local authority. from personal
liability.
1875 c. 55.

67.—(1) The sections of the Act of 1936 mentioned in Part I of Application of
Schedule 2 to this Act shall have effect as if references therein to general
that Act included references to this Act except Part II (Lands, enactments,
streets, etc).

PART XI
—cont.

(2) The sections of the said Act of 1936 mentioned in Part II of the said schedule shall have effect as if references therein to that Act included references to the following provisions of this Act:—

- Part III (Buildings and structures);
- Part VI (Fire prevention);
- Section 7 (Defacing of road surface, etc.);
- Section 8 (Prohibition of vehicles on grass verges, gardens, etc.);
- Section 11 (Recovery of street works charges where owner unknown);
- Section 21 (Sanitary conveniences at places of public exhibition, etc.);
- Section 22 (Sanitary conveniences for persons employed on construction work);
- Section 23 (Power to order alteration of domestic chimneys); and
- Section 25 (Safety of stands).

(3) The section of the said Act of 1936 mentioned in Part III of the said schedule shall have effect as if references therein to that Act included references to the following provisions of this Act:—

- Section 32 (Underground parking places);
- Section 41 (Byelaws as to sale, etc., of animal feeding meat); and
- Section 42 (Registration of premises used in connection with sale, etc., of animal feeding meat).

(4) The sections of the Act of 1959 mentioned in Part IV of the said schedule shall have effect as if references therein to that Act included references to the following provisions of this Act:—

- Section 11 (Recovery of street works charges where owner unknown);
- Section 13 (Licence to erect scaffolding); and
- Section 14 (Oil pipes and manholes in streets).

68. For the protection of the undertakers the following provisions shall, unless otherwise agreed in writing between the Corporation and the undertakers, apply and have effect:—

PART XI
—cont.

For protection
of certain
statutory
undertakers.

(1) In this section—

“ apparatus ” means—

(a) electric lines and works (as respectively defined in the Electric Lighting Act, 1882) belonging to or maintained by the Central Electricity Generating Board or the South Wales Electricity Board; and

(b) mains, pipes or other apparatus belonging to or maintained by the Wales Gas Board;

and includes any works constructed for the lodging therein of apparatus;

“ in ” in a context referring to apparatus includes under, over, across, along or upon;

“ the undertakers ” means—

the Central Electricity Generating Board;

the South Wales Electricity Board; and

the Wales Gas Board;

or any of them, as the case may require:

(2) (a) When the Corporation serve a notice under subsection (2) of section 17 (Securing of unoccupied houses under Housing Act, 1957) of this Act they shall forthwith give to the undertakers a copy of such notice;

(b) Nothing in the said section 17 shall prejudice the right of the undertakers to enter upon any premises in exercise of their statutory powers in that behalf:

Provided that, without prejudice to any other obligation or liability arising in respect of any entry in exercise of any statutory powers, the undertakers in exercising such powers to enter in respect of any premises required to be secured under the said section 17 shall ensure that the premises are not left less secure by reason of the entry:

(3) Nothing in section 30 (Parts of buildings used for storage of inflammable substances) of this Act shall apply to any building or part of a building by reason only that part of that building is used or intended to be used to contain a pressure governor, meter booster or other apparatus for or in connection with the supply of gas:

PART XI
—cont.

- (4) Any difference which may arise between the Corporation and the undertakers under this section (other than a difference as to the meaning or construction of this section) shall be determined by a single arbitrator to be appointed by agreement between the parties or in default of agreement to be appointed on the application of either party (after notice in writing to the other party) by the President of the Institution of Civil Engineers.

Crown rights.

69. Nothing in this Act shall affect prejudicially any estate, right, power, privilege or exemption of the Crown and, in particular and without prejudice to the generality of the foregoing, nothing herein contained shall authorise the Corporation to take, use or in any manner interfere with, any portion of the shore or bed of the sea or of any river, channel, creek, bay or estuary or any land, hereditaments, subjects or rights of whatsoever description belonging to Her Majesty in right of Her Crown and under the management of the Crown Estate Commissioners without the consent in writing of those commissioners on behalf of Her Majesty first had and obtained for that purpose.

Costs of Act.

70. All the costs, charges and expenses preliminary to and of and incidental to the preparing, applying for, obtaining and passing of this Act as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Corporation out of the general rate fund.

SCHEDULES

SCHEDULE 1

Section 51.

ENACTMENTS MENTIONED IN SECTION 51 (1) (b)

Public Health Act, 1875.	1875 c. 55.
Public Health Acts Amendment Act, 1890.	1890 c. 59.
Public Health Acts Amendment Act, 1907.	1907 c. 53.
Public Health Act, 1925.	1925 c. 71.
Land Drainage Act, 1930.	1930 c. 44.
Public Health Act, 1936.	1936 c. 49.
Housing Act, 1957.	1957 c. 56.
Public Health Act, 1961.	1961 c. 64.
Land Drainage Act, 1961.	1961 c. 48.

SCHEDULE 2

Section 67.

GENERAL ENACTMENTS APPLIED

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SECTIONS OF ACT OF 1936 APPLIED TO THIS ACT OTHER THAN PART II

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283	Notices to be in writing; forms of notices, &c.
286	Proof of resolutions, &c.
288	Penalty for obstructing execution of Act.
296	Summary proceedings for offences.
297	Continuing offences and penalties.
304	Judges and justices not to be disqualified by liability to rates.
328	Powers of Act to be cumulative.
341	Power to apply provisions of Act to Crown property.

PART II

SECTIONS OF ACT OF 1936 APPLIED TO PARTS III AND VI AND SECTIONS 7, 8, 11, 21 TO 23 AND 25 OF THIS ACT

Section	Marginal note
275	Power of local authority to execute certain work on behalf of owners or occupiers.
276	Power of local authority to sell certain materials.
277	Power of councils to require information as to ownership of premises.
287	Power to enter premises.
289	Power to require occupier to permit works to be executed by owner.
291	Certain expenses recoverable from owners to be a charge on the premises: Power to order payment by instalments.
292	Power to make a charge in respect of establishment expenses.
293	Recovery of expenses, &c.
294	Limitation of liability of certain owners.
295	Power of local authority to grant charging orders.
299	Inclusion of several sums in one complaint, &c.
329	Saving for certain provisions of the Land Charges Act, 1925.

SCH. 2
—cont.

PART III

SECTION OF ACT OF 1936 APPLIED TO SECTIONS 32, 41 AND 42 OF THIS
ACT

Section	Marginal note
287	Power to enter premises.

PART IV

SECTIONS OF ACT OF 1959 APPLIED TO SECTIONS 11, 13 AND 14 OF THIS
ACT

Section	Marginal note
269	Summary proceedings for offences.
270	Continuing offences.
273	Notice to be given of right of appeal.
274	Appeals and applications to magistrates' courts.
275	Appeals to quarter sessions from decisions of magistrates' courts.
277	Effect of decision of court upon an appeal.
278	Judges and justices not to be disqualified by liability to rates.
280	Notices, etc., to be in writing; forms of certain documents.
281	Authentication of documents, etc.
282	Service of notices, etc.
283	Reckoning of periods.

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3. Interpretation.

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LANDS, STREETS, ETC.

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6. Extension of section 5 of Local Authorities (Land) Act 1963.
7. Defacing of road surface, etc.
8. Prohibition of vehicles on grass verges, gardens, etc.
9. Illumination of street names.
10. Numbers of houses.
11. Recovery of street works charges where owner unknown.
12. Temporary prohibition or restriction of traffic during execution of works.

Section

13. Licence to erect scaffolding.
14. Oil pipes and manholes in streets.
15. Signs indicating stopping places for public service vehicles.
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18. Expenses of executing demolition orders, etc.

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Part II—Sections of Act of 1936 applied to Parts III and VI and sections 7, 8, 11, 21 to 23 and 25 of this Act.

Part III—Section of Act of 1936 applied to sections 32, 41 and 42 of this Act.

Part IV—Sections of Act of 1959 applied to sections 11, 13 and 14 of this Act.